

26SMCV02495 26SMCV02495

County: los-angeles

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Case Number: 26SMCV02495 Hearing Date: July 30, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ATHENS TOWERS LLC, et al.,

Plaintiffs,

v.

METROPOLIS ARCHITECTURE, INC., et al.,

Defendants.

Case No.: 26SMCV02495

Hearing Date: July 30, 2026

[TENTATIVE] order RE:

applications for writs

of possession and temporary

restraining order

BACKGROUND

This case arises from a dispute over architectural and other construction plans. Plaintiffs own six real properties. In 2022, Plaintiffs retained the services of Defendants to provide architectural designs for the properties, including but not limited to the preparation of construction documents and architectural plans.

The contracts provide in relevant part that “All the documentations including all the plans & renderings shall be presented to the City and are the properties of the Client”. (Exs. 1-6 to Golshan Decl.). This clause does not make any exceptions for instances where Plaintiffs fail to pay Defendants.

The parties agree that Plaintiffs have not paid the full amount due under the contracts. Defendants maintain that the total unpaid amount across all contracts exceed \$100,000. (Yousefzadeh Decl. ¶8.) In contrast, Plaintiffs represent that only \$4,827.03 is outstanding. (Reply at 4:10-17.)

Plaintiffs claim that Defendants are extorting them to pay sums Plaintiffs claim are not due, by threatening to call for an inspection of the properties. According to Plaintiffs, if an inspection is called and no work has been performed on the properties, then Plaintiffs will lose over \$1 million for each property. The operative complaint alleges claims for claim and delivery, conversion, theft and extortion.

This hearing is on Plaintiffs’ applications for writ of possession and temporary restraining orders. Plaintiffs seek an order requiring Defendants to deliver the plans and drawings to Plaintiffs and if they fail to do so, directing the levying officer to take possession and deliver them to Plaintiffs. Plaintiffs also apply for a TRO prohibiting Defendants from concealing or otherwise removing the documents in such a manner as to make them less available to seizure and prohibiting Defendants from requesting governmental inspections of the real properties.

LEGAL STANDARD

A writ of possession is issued as a provisional remedy in a cause of action for claim and delivery, also known as replevin. (See Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1288.) This provisional remedy is available in any action in which a plaintiff asserts a present right to the possession of personal property. (Costello v. Bell (1915) 27 Cal. App. 102, 104.)

Generally, a valid writ of possession procedure must include: (1) an opportunity for a pre-seizure hearing, (2) ex parte seizure in only extraordinary cases; and (3) a showing of probable cause as to both the claim’s validity and to the property’s location. (See 6 Witkin, California Procedure (5th ed. 2008) § 249, pp. 199-200.)

Upon the filing of the complaint for claim and delivery or replevin, or at any time thereafter, a plaintiff may apply for an order for a writ of possession. The parties must use the mandatory approved Judicial Council forms in a claim and delivery proceeding. (Judicial Council Forms CD-100, et seq.).

At the hearing, the Court decides the merits of the application based on the pleadings and declarations. (Code Civ. Proc., § 512.050.)

ANALYSIS

Writ of Possession

To obtain the writ, plaintiff must show that the plaintiff has the right to immediate possession of tangible personal property and the property is being wrongfully withheld by defendant. (Code of Civ. Proc. §512.010.) A writ of possession only applies to tangible goods or real property capable of being seized. (Lamus v. Engwicht (1919) 39 Cal.App. 523, 528-529 [“the property so sought to be recovered must exist in some concrete or tangible form, capable of identification and seizure.”].)

Here, the properties sought to be possessed are tangible physical and electronic documents that are capable of being identified and seized. Further, Plaintiffs have shown they have the right to immediate possession of the plans because the contracts provide that the plans are their properties. Their right to the plans is not conditioned on their full payment of amounts purportedly owed under the contracts. By refusing to turn over the plans, Defendants are improperly withholding them.

To obtain a writ, Plaintiffs must also establish a probable validity of prevailing on their claims. The plaintiff establishes “probable validity” by showing “it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (§ 511.090.)

Plaintiffs’ complaint includes claims for claim and delivery. To prevail on a claim for claim and delivery, the plaintiff must show: (1) the plaintiff’s right to possession of the property; (2) the defendant’s wrongful possession; and (3) damages as a result of the wrongful withholding. (See 5 Witkin, Cal. Procedure (4th ed. 1997) Pleading, §§ 651-659.) For reasons stated above, Plaintiffs have established each of these elements and therefore they have shown a probable validity of prevailing on their claims for claim and delivery.

Section 512.010 also requires that Plaintiffs must state (based on their best knowledge, information and belief) the location of the property sought to be seized. Here, Plaintiffs represent that the properties are at Defendants’ offices, located in 1401 Westwood Blvd, Suites 200 and 280, Los Angeles, California 90024.

Another requirement for writ of possession is that Plaintiffs state the personal property has not been taken for a tax, assessment, or fine, pursuant to any statute or seized under an execution against Plaintiffs’ property. Plaintiffs have made the required statement. (Golshan Decl., ¶49).

The court next turns to the issue of whether an undertaking is required in this case. Generally, a writ of possession cannot issue until the plaintiff files an undertaking running in favor of the defendant if return of the property is ordered. The amount of the undertaking is not to be less than twice the value of the defendant’s interest in the property. (Code Civ. Proc., § 515.010(a).) “The value of the defendant’s interest in the property is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant’s interest in the property.” (Id.)

If the court finds that defendant has no interest in the property, however, no undertaking is required. (Code Civ. Proc., § 515.010(b).) In that event, the writ of possession must state the amount of any counterbond defendant must post to prevent plaintiff from taking or regaining possession. (Id.)

Here, the Court determines that Plaintiffs should not be required to post a bond. Plaintiffs have shown that Defendants do not have a right to possession of the documents at issue under the contracts which specifically state that Plaintiffs own the plan documents without any exceptions including in cases of fee disputes. With regard to the amount of any counterbond, Plaintiffs claim that the value of the documents is approximately \$6 million. (Memorandum at 8:24-9:3.) Defendants have not offered any contrary evidence. Accordingly, the Court concludes that the counterbond will be set at \$6 million.

TRO

Once an application for writ of possession is filed, plaintiff may seek a TRO to prevent defendant from concealing, removing or transferring the property or any interest therein, or otherwise impairing its value “either by acts of destruction or by failure

to care for the property in a reasonable manner.” (Code of Civ. Proc. §513.020.)

To obtain a TRO, the plaintiff must show: (1) the probable validity of the plaintiff's claim to possession of the property under applicable substantive law, (2) a probability of “immediate danger” that the property will be transferred, concealed or removed, or may become substantially impaired in value and (3) that an undertaking has been filed pursuant to Code of Civ. Proc. §515.010. (Code of Civ. Proc. §513.010(b).)

Here, as stated above, Plaintiffs have shown a probable validity of prevailing on their claims for claim and delivery. However, the Court concludes Plaintiffs have not shown there is any immediate danger to the documents. Plaintiffs' manager/member Joseph Golshan only states conclusorily that there is such danger without articulating any facts to support the claim. Accordingly, the Court denies this portion of the TRO application.

Plaintiffs also ask the Court to prohibit Defendants from calling an inspection of the Properties, because it would substantially impair the value of the properties sought to be seized. Plaintiffs submit the declaration of Mr. Golshan in support of their original memorandum. That declaration was bereft of any facts or detail, stating only that “Defendants have threatened [sic] to call for inspection of the Real Properties in order to coerce Plaintiffs into paying Defendants sums, which are neither due nor payable.”

While Plaintiffs subsequently submitted further declarations that provided more information on these alleged threats in conjunction with their reply, the Court declines to consider them as they could (and should) have been submitted with the original memorandum. Accordingly, the Court also declines to grant this portion of the TRO application.

CONCLUSION

For the foregoing reasons, the Court grants Plaintiffs' application for writ of possession and denies the applications for a TRO.

IT IS SO ORDERED.

DATED: July 30, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court